Chicago Public Schools AI Guidebook: Data and Student Privacy Passages

Excerpted verbatim from *AI Guidebook, Version 6.0 (Chicago Public Schools)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. Passages marked [graphic] were transcribed from rendered pages (two-column layouts, tables and glossary entries) and were not checked automatically. Text repeated in the Version History appendix (page 57) is omitted.

Introduction (excerpt)

Source: page 5

CPS is committed to integrating GenAI tools safely, responsibly, and meaningfully, ensuring they align with our educational goals and standards while upholding the values and privacy of our community.

This initiative aims to prepare every student for success in a continually evolving technological world, while steadfastly upholding the District's commitment to data privacy, security, and academic integrity.

AI Principles: Ethical and Transparent (excerpt)

Source: page 9

We will promote responsible data practices, adhering to privacy-by-design principles, and protect the privacy and security of student and other stakeholder information.

AI Literacy: Ethical Awareness (excerpt)

Source: page 11

Ethical Awareness — Recognizing the ethical considerations including bias, fairness, transparency, data privacy, and AI's impact on society.

AI Literacy Essentials (excerpt)

Source: page 13 [graphic]

[graphic] CPS plans to integrate a variety of GenAI tools into our daily operations. District-ready Generative AI products and tools come from either CPS internal development or external vendors, which require usage and data handling to be governed by strict contracts that align with our District's standards and policies. Unapproved, third-party GenAI products are blocked on the CPS network to maintain our robust AI Governance, protect our District, mitigate risk, and ensure responsible adoption. For more information on available tools and privacy restrictions visit the Approved Generative AI Tools section of the Guidebook.

Models vs Tools (excerpt)

Source: page 14

Even if CPS has a contract with the company that produced the foundational model being used in a GenAI product (say an EdTech tool is powered by Gemini), that doesn't guarantee that the product has a data agreement with the model that adheres to CPS AI Governance.

Memory vs Training

Source: page 14

A common misconception about conversations with a generative AI chatbot is how it “trains” on your data. Some people may believe that as they engage with the chatbot, it is actively learning from their answers. It is important to understand that a chatbot retaining your conversation is not the same as the GenAI model training on your data.

For example: You tell Gemini that your birthday is in March. If, in a later response or conversation, you ask Gemini where you should go to dinner and it produces a response like “Since you’re a March Aries, and Aries is a fire sign, you should try a hibachi restaurant where the food is cooked on an open flame in front of you. Here are some options in your area…” This is an example of the model referencing previous data you gave it and using it to tailor responses accordingly, often called the tool’s memory. This doesn’t impact any conversation other than your own, and if you start a new conversation window, or erase the memory, it won’t impact your future conversations either.

Let’s say you go on to respond that you don’t like hibachi. If Google saves your conversation and uses it to determine patterns that inform how the model responds to anyone in the future, this is the model training on your data. This difference is why we can have agreements with Google, and other generative AI tools, that allow you to still have memory-enabled conversations while maintaining data privacy.

For more information on data agreements, see the Approved Generative AI Tools section of this document.

General Guidance for All Stakeholders: Privacy, Security, and Confidentiality

Source: page 16

When using GenAI tools, it is crucial to understand that any information provided—whether through prompts entered by the user or AI-generated responses—could potentially be used by companies to train their models unless that company has an approved data privacy agreement with the District. This includes stakeholders’ personal details, and any proprietary or confidential information belonging to CPS. Assume that all information shared with a GenAI application will be used to train the model and could become accessible in the public domain unless explicitly told otherwise.

To safeguard privacy and maintain confidentiality, you should:

- Review the data privacy policy and terms of service of GenAI tools before using them to be aware of how the tool handles data and inputs.
- Always inform others when using GenAI tools that may impact their data and request their permission before doing so (i.e., meeting notetakers). Never input personally identifiable information or protected health information into GenAI tools that are not approved by the District.
- If using a GenAI tool that does not have an approved data privacy agreement with the District, never input:
- confidential, sensitive, or legally protected information;
- personally identifiable information or protected health information;

- copyrighted material or proprietary CPS intellectual property.

Legally protected information would include, though it is not limited to, information contained in a student's record; information that identifies students, employees, and other individuals; information contained in an employee's record; proprietary information; etc.

Staff: Contact your manager or the IT Service Desk at (773) 553-3925 if you are unsure whether the information you are planning to input falls into any of the above categories.

General Guidance for All Stakeholders: Age Appropriate Usage

Source: page 18

GenAI tools, whether publicly available or subscription-based, typically set age restrictions in their Privacy Policy or Terms and Conditions. Before encouraging your students to interact with any tools, make sure to review the terms to ensure compliance with them. Below is a list of mainstream tools and their respective restrictions for your awareness. This does not imply District approval. Details on District approved tools can be found in the Approved Generative AI Tools section.

[graphic] Tool (company) | No Access | Parental Consent | No Permission Needed

- [graphic] ChatGPT (OpenAI) | Under 13 | Parental consent must be obtained for students 13–17 | 18+
- [graphic] Claude (Anthropic) | Under 18 | N/A - no access under 18 | 18+
- [graphic] Gemini, Gems, Nano Banana (Google)+ | N/A | Parental consent must be obtained for students | 18+
- [graphic] NotebookLM (Google)+ | N/A | Parental consent must be obtained for students | 18+
- [graphic] Copilot (Microsoft)+ | Under 18 | N/A - no access under 18 | 18+
- [graphic] Perplexity | Under 13 | Parental consent must be obtained for students 13–17 | 18+
- [graphic] Adobe Firefly | N/A* | Parental consent must be obtained for students | 18+
- [graphic] Canva | N/A* | Parental consent must be obtained for students | 18+

[graphic] * Only enforced for enterprise accounts + Enterprise product of the District

General Guidance for All Stakeholders: Tool Approval and Use

Source: page 19

Approved GenAI tools can be found in the EdTech Catalog. Access to GenAI tools is governed by all relevant federal, state, and local student privacy and safety laws (FERPA, COPPA, SOPPA, etc.), along with District policy. Under SOPPA, all educational technology tools, including those that leverage GenAI, are reviewed, approved, and listed in the EdTech Catalog. Parents and guardians can choose for their child not to use specific GenAI tools through individual school opt-out practices. Schools are encouraged to use or adapt an existing opt-out form if one already exists. If not, this opt-out sample form can be customized.

Guidance for Students: Tool Approval and Use (excerpt)

Source: page 21

Students may only use age-appropriate GenAI tools that have been vetted and approved by CPS, as reflected in the EdTech Catalog.

A GenAI tool's approval within the EdTech Catalog is a reflection that it meets the District's standards for privacy, security, and confidentiality in compliance with all applicable state and federal laws. However, it does not reflect that the tool meets the District's academic standards for verification, bias, or fairness.

Guidance for Students: Monitoring Safe Use (excerpt)

Source: page 24

Usage of GenAI tools will be governed under the SOPPA model, wherein teachers are responsible for monitoring student use of approved technologies.

Guidance for Families (excerpt)

Source: page 25 [graphic]

Age-Appropriate and Approved Tools

[graphic] CPS staff ensure that students use GenAI tools that are appropriate for their age and maturity level. Teachers will adhere to age restrictions and only use tools suitable for students. To ensure the safety and security of student data, CPS rigorously evaluates all educational technology. (EdTech) tools. Only tools that meet strict standards for data privacy, security, and confidentiality are approved for use. The CPS EdTech Catalog provides a comprehensive list of these vetted tools, along with details about their data privacy practices. For more information and to view approved GenAI tools, visit the EdTech Catalog.

Opt-Out Options

[graphic] Schools will clearly communicate information about the GenAI tools used in classrooms and the procedures for opting out if you prefer your child not to use them. Schools are encouraged to use or adapt an existing opt-out form if one already exists, and a sample that can be customized has been provided here. Your participation in this process helps ensure that your child's educational experience aligns with your family's values and preferences.

Guidance for Educators and Staff: Responsible Use (excerpt)

Source: page 26

Additionally, staff may enter confidential data only into GenAI tools that have approved data privacy agreements with the District, including but not limited to student record information, confidential employee information, and any identifying information. As a further precaution, staff are advised to turn off chat history and data training in the settings of any GenAI tool used in their professional practice.

Guidance for Educators and Staff: Tool Approval and Use

Source: page 26

Staff members are required to use only GenAI tools that have been vetted and approved by CPS, as reflected in the EdTech Catalog. A tool's approval within the EdTech Catalog reflects that it meets the District's standards for privacy, security, and confidentiality in compliance with all applicable state and federal laws. However, it does not reflect that the tool meets the District's academic standards for verification, bias, fairness, or output quality. … This policy ensures that the tools align with our educational goals and adhere to our rigorous data privacy and security standards.

Guidance for ITS: Design and Development (excerpt)

Source: page 29

Ensure all software is secure by design, free from vulnerabilities, and continuously evaluated through testing, patching, and authentication measures.

Guidance for ITS: Monitoring Safe Use: Noncompliance (excerpt)

Source: page 30

CPS reserves the right to access and monitor the use of AI applications on any CPS-issued devices or that appear on CPS-managed networks to ensure compliant use of these systems in accordance with the Staff and Student Acceptable Use Policies.

If monitoring systems and processes detect a possible guideline violation, or if a User reports a possible guideline violation, the suspect event should be processed using appropriate security incident response processes.

Guidance for Vendors: Tool Approval and Use

Source: page 31

All AI EdTech tools provided by vendors must undergo the same rigorous vetting and approval process as all EdTech tools used by CPS before they can be used by students or with student data. Known as the EdTech Request for Qualifications (RFQ), this process is currently available once a year and vendors can sign up for notification of future contract opportunities on the CPS Procurement Website.

Approval signifies that the tool meets the District's standards for privacy, security, and confidentiality in compliance with all applicable federal, state, and local student privacy and safety laws (FERPA, COPPA, SOPPA, etc.) and District policy.

Vendors must provide comprehensive documentation regarding their tool's data privacy practices, including how data is collected, stored, used, and protected. This information will be a key factor in the approval process.

Vendors should be prepared to provide information regarding the age appropriateness of their tools, including any age restrictions outlined in their privacy policy or terms and conditions.

Guidance for Vendors: Privacy, Security, and Confidentiality

Source: page 32

Vendors must ensure that their AI tools and services are designed and operated to protect the privacy and security of all CPS stakeholders, including students, families, and CPS employees.

It is imperative that no personally identifiable information (PII) or protected health information is collected, stored, or processed in a manner that goes against CPS guidelines and could compromise the privacy of our stakeholders.

Foundational model vendors must ensure that stakeholder information, copyrighted material, or proprietary CPS intellectual property is not used to train their models without explicit permission. Application layer vendors must ensure that the same is not used in the fine-tuning of their tools or shared with the foundational model vendor without explicit permission.

Vendors should implement robust security measures to prevent unauthorized access, data breaches, and misuse of CPS data. Security by design principles should be followed, with continuous evaluation through testing, patching, and authentication measures.

Approved Generative AI Tools (excerpt)

Source: page 35

The rapid evolution of AI technology has introduced significant data security and legal complexities. Our priority remains enabling productive work within a secure and compliant environment, while recognizing and valuing the exploration and innovation happening District-wide. Unapproved, third-party GenAI products are blocked on the CPS network to maintain our robust AI Governance, protect our District, mitigate risk, and ensure responsible adoption. Approved tools have entered into an enterprise data share agreement, meaning they have a contract with CPS agreeing not to train their models on or store any data from interactions with their product–ensuring student privacy.

Enterprise Products

[graphic] Microsoft Copilot, Access Notes: You have to sign in through Microsoft, NOT create a personal account with your CPS email, for your usage to fall under the CPS data-privacy agreement

Internal AI Product Development Process (excerpt)

Source: page 36

However, our mandate at CPS goes beyond mere functionality: we strive for student privacy, instructional quality, and equitable access. While we leverage external tools where appropriate, we prioritize internal development for high-stakes use cases to ensure AI implementations in the District align with our values and obligations. We build our own tools not to reinvent the wheel, but to ensure the vehicle is safe for our students to ride in.

Beyond Enterprise: Product Approval (excerpt)

Source: page 37

New products cannot be used until they have a contract and data share agreement with the District. Be aware that this process can take up to a year and half.

Professional Learning Communities (excerpt)

Source: page 40

Participants engage in ongoing, hands-on learning to develop their AI literacy, focusing on ethical considerations, data privacy, and effective usage within CPS's systems.

Glossary (excerpt)

Source: pages 53 and 55 [graphic]

[graphic] **AI Safety:** Measures taken to ensure AI tools are used in ways that prevent harm to individuals or society. This can encompass data privacy, bias mitigation, and responsible development.

[graphic] **Data Privacy:** Protecting stakeholders' personally identifiable information (PII) when using digital tools, including AI tools.

[graphic] **Digital Citizenship:** Responsible and ethical use of technology, encompassing online safety, privacy, critical thinking, and respectful interactions in the digital world.

[graphic] **Vendor GenAI:** This type of GenAI is provided by third-party vendors whom CPS may contract to ensure data handling and usage align with District standards and policies. It is important for CPS to carefully vet any vendors to ensure alignment with District values and data privacy standards.